

25STCV30356 25STCV30356

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BACKGROUND

This case is a personal injury action. Plaintiff Alexander Estiven Seijas Torrez alleges he was injured in a motor vehicle accident for which Defendants Ryder Truck Rental, Inc., Florexp LLC, Kendall Floral Supply, LLC, and Jose Enrique Gonzales are liable.

On October 17, 2025, Plaintiff filed a complaint against Defendants. The complaint alleges two causes of action stemming from the motor vehicle accident alleged above.

On March 30, 2026, Plaintiff filed a Motion to Compel Defendant Florexp LLC to Produce Documents. Specifically, Plaintiff seeks to compel the production of the "Driver's Accident Report", "Claim file," "Personnel File", "Record of Road Test", and "Safety Training" as identified by Defendant in its privilege log.

No opposition or reply has been filed.

TENTATIVE RULING

Plaintiff's Motion is GRANTED.

Defendant Florexp LLC must produce the requested documents within twenty (20) days from the date of this hearing.

LEGAL STANDARD

Under Code of Civil

Procedure section 2031.310, the Court may order a responding party to serve a further response to a request for production of documents when the Court finds that any of the following apply: (1) a statement of compliance with the demand is incomplete; (2) a representation of inability to comply is inadequate, incomplete, or evasive; (3) an objection in the response is without merit or too general.

A motion to compel further

response to requests for production “shall set forth specific facts showing good cause justifying the discovery sought by the inspection demand.” (Code Civ. Proc., § 2031.310, subd. (b)(1).) To establish ‘good cause,’ the burden is on the moving party to show both: (1) relevance to the subject matter (e.g., how the information in the documents would tend to prove or disprove some issue in the case); and (2) specific facts justifying discovery (e.g., why such information is necessary for trial preparation or to prevent surprise at trial). (See *Glenfed Development Corp. v. Superior Court* (1997) 53 Cal.App.4th 1113, 1117.) If ‘good cause’ is shown by the moving party, the burden is then on the responding party to justify any objections made to document disclosure. (See *Coy v. Superior Court* (1962) 58 Cal.2d 210, 220-21.)

Code of Civil Procedure

section 2031.310, subdivision (h) authorizes a mandatory issuance of sanctions against “any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response to a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.”

DISCUSSION

I.

Meet

and Confer

A motion to compel further

responses must be accompanied by a meet and confer declaration (See Code Civ. Proc., § 2031.310, subd. (b)(2).) Said declaration must demonstrate a “reasonable

and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion.” (Code Civ. Proc., § 2016.040, subd. (a).)

Here, the parties discussed Defendant’s discovery responses by a series of letters and emails. (See Laforet Decl., Exhs. 3-4.) However, the parties did not meet in person, by telephone, or by videoconference. Thus, the meet and confer requirement has not been satisfied. (See Code Civ. Proc., § 2031.310, subd. (b)(2); Code Civ. Proc., § 2016.040, subd. (a).) Despite this, the Court shall consider the merits of Plaintiff’s motion.

II.

Plaintiff’s

Requests for Production of Documents (“RPD”)

Plaintiff seeks to compel the production of specified documents in response to RPDs Nos. 1, 2, 9, 10, 11, and 15. (See Motion, p. 6:1-21.) Plaintiff contends further responses are necessary because they will help determine the extent of Defendants’ negligence and whether there is any veracity to Defendants’ claim that Plaintiff is partially responsible for the accident. (See id. at pp. 5:20-24, 10:12-15, 14:8-15.)

After consideration of the motion and accompanying documents, the Court finds good cause to compel Defendant’s production of the requested documents. (See Code Civ. Proc., § 2031.310, subd. (b)(1).) Plaintiff has put forth specific facts showing good cause justifying production of the requested discovery. (See Code Civ. Proc., § 2031.310, subd. (b)(1).)

Because Defendant did not file an opposition, they did not meet their assertion of privilege, work product protection or other objections to the production of the documents at issue. (See *Coy v.*

Superior Court (1962) 58

Cal.2d 210, 220-221.) Accordingly, Defendant’s objections and assertions of privilege are found to be without support and the Court will compel the production of the identified documents.

CONCLUSION

For the foregoing reasons,

Plaintiff's Motion to Compel Further Discovery Responses is GRANTED.

Defendant must serve produce

the "Driver's Accident Report", "Claim file," "Personnel File", "Record of Road Test", and "Safety Training" as identified by Defendant in its privilege log within twenty (20) days from the date of the Court's order.